

Opinion of KENNEDY, J.

his functional role as an advocate, were entitled to absolute immunity, 424 U. S., at 431, n. 33. See *ante*, at 269–270.

There is a reason even more fundamental than that stated by the Court for rejecting Buckley’s argument that *Imbler* applies only to the commencement of a prosecution and to in-court conduct. This formulation of absolute prosecutorial immunity would convert what is now a substantial degree of protection for prosecutors into little more than a pleading rule. Almost all decisions to initiate prosecution are preceded by substantial and necessary out-of-court conduct by the prosecutor in evaluating the evidence and preparing for its introduction, just as almost every action taken in the courtroom requires some measure of out-of-court preparation. Were preparatory actions unprotected by absolute immunity, a criminal defendant turned civil plaintiff could simply reframe a claim to attack the preparation instead of the absolutely immune actions themselves. *Imbler v. Pachtman*, *supra*, at 431, n. 34. Cf. *Eastland v. United States Servicemen’s Fund*, 421 U. S. 491, 503–507 (1975). Allowing the avoidance of absolute immunity through that pleading mechanism would undermine in large part the protections that we found necessary in *Imbler* and would discourage trial preparation by prosecutors. In this way, Buckley’s proffered standard would have the perverse effect of encouraging, rather than penalizing, carelessness, cf. *Forrester v. White*, *supra*, at 223, and it would discourage early participation by prosecutors in the criminal justice process.

Applying these principles to the case before us, I believe that the conduct relating to the expert witnesses falls on the absolute immunity side of the divide. As we recognized in *Imbler* and *Burns*, and do recognize again today, the functional approach does not dictate that all actions of a prosecutor are accorded absolute immunity. “When a prosecutor performs the investigative functions normally performed by a detective or police officer, it is ‘neither appropriate nor justifiable that, for the same act, immunity should protect the